

UNIVERSITY HILLS HOMEOWNERS' ASSOCIATION

RULES AND REGULATIONS

The University Hills Homeowners' Association is a community of 165 homes. It is important to each owner that the community maintain a high aesthetic quality as well as a strong financial value. The purpose of these rules and regulations is to summarize the Declaration of Covenants, Conditions and Restrictions (CC&Rs), which has been accepted by each owner as a part of living at University Hills. The maintenance of all facilities and the common area is paid for by a monthly fee. Therefore, it is to the advantage of all to enjoy the facilities and see that they are cared for in a proper manner. If each member will respect the feelings and rights of the other members, we will achieve our goal of harmonious community living.

BOARD OF DIRECTORS

The control of the Association has been turned over to the homeowners, and the number of Board members has increased to five (5). Any owner in good standing is then eligible to become a Board member. The purpose of the Board of Directors is to set and enforce policies for the Association and to act in the best interest of the total membership.

VOTING RIGHTS

Each lot owner has one membership in the Association and one vote per membership. In the event an assessment remains unpaid following ten days written notice, the Association may suspend the owner's voting rights as well as the right to use the recreational facilities.

ASSOCIATION RESPONSIBILITY

1. Maintenance of all common areas such as recreational and common area landscape.
2. Financial responsibility for all common area utilities.
3. Maintain insurance coverage for all common areas.

OWNER RESPONSIBILITY

1. All yards visible from the street shall have attractive landscaping installed within a reasonable period of time, not to exceed 180 days from the close-of-escrow. Homeowners are responsible for the maintenance of their home and for keeping all shrubs, trees, grass and plantings neatly trimmed, properly cultivated and free of weeds. If a building, yard, or improvement falls into disrepair, or if the front yard does not have the landscaping installed within the allotted time, the Association may have the work done and charge the homeowner for the incurred costs.

GENERAL RESTRICTIONS

The following are clearly stated as restrictions:

1. No noxious or offensive activity.
2. No rubbish or debris can accumulate on a lot. Trash must be kept in a covered container and screened from the view of adjacent units.
3. No clothesline or recreational vehicle, etc. visible above the fence line.
4. No unit shall be used for a business location.
5. No antennas
6. No mis-use and mis-maintenance of the lot.

AUTOS

No motor vehicle shall be parked, repaired or constructed on any lot, street or common area, except for emergency repairs of a brief nature.

RECREATIONAL VEHICLES

No recreational vehicles shall be parked or stored on any street or common area. This includes motor homes, mobile homes, trailers, boats, commercial-use trucks or campers.

PETS

Only generally recognized household pets are allowed. The Board of Directors has the right to declare an animal(s) a nuisance and take steps to have the animal removed.

SIGNS

No signs are allowed other than:

1. A name and address sign not exceeding 9 inches by 30 inches.
2. A standard "For Sale" or "For Lease" sign not exceeding 30 inches by 30 inches.
3. No signs in upstairs windows.

Prior written approval of the Board is required for any variation.

POOL RULES

General common sense and courtesy should prevail at the pool. Since the pool is a shallow play pool, varying from three feet to five feet in depth, do not jump or dive into the pool.

1. No glass in the pool area.
2. No food in the pool area.
3. No running around the pool.
4. No loud noise or disturbance.
5. Suntan oil should be washed off at the shower area before entering the pool.
6. Flotation devices should not be used when there are a number of people in the pool.
7. Children under 14 years of age shall not be allowed in the pool area unless accompanied by a resonsible adult.

UNIVERSITY HILLS HOMEOWNERS' ASSOCIATION
POOL INFORMATION AND GUIDELINES

The pool is for the use of UNIVERSITY HILLS residents and their guests.

The pool area is open for use anytime, except while maintenance and/or cleaning is in progress. During this time, the pool will be closed for the safety of the residents and their guests.

Since it is not economically feasible for the Association to provide lifeguards for the pool, safety becomes an individual responsibility. Following is a list of guidelines which should be adhered to while in the pool area. A minimum number of guidelines will be necessary if courtesy and consideration for others is exercised.

Children under the age of fourteen (14) and those who cannot swim, must be accompanied by an adult at all times while in the pool area. Children over fourteen years of age and who have demonstrated their ability to swim, should not swim unless an adult is at home to be notified in the event of an emergency, illness or conduct problem.

There will be a maximum of two (2) guests allowed, per University Hills household, in the pool area.

Suggested Pool Hours: 5:00 a.m. to 10:00 p.m.

Children's Pool Hours: Weekdays 8:00 a.m. to 8:00 p.m.
Weekends & Holidays 10:00 a.m. to 9:00 p.m.

Running, rough play in or out of the pool, excessive splashing etc., can be dangerous and should be avoided.

Diving is prohibited by law.

Food, glass, breakable items and pets can be a health hazard and should not be brought into the pool area.

Please use ashtrays, and place all trash in the containers provided.

One pool key will be issued to each unit. An additional key can be obtained from the management company for a charge of \$2.50.

Balanced chemicals and an efficient filter system will normally keep a pool clean and infection free; however, there are some things which cause chemical imbalance or filter problems. The following guidelines are suggested:

- * Use only colorfast swimming attire — dye has an adverse effect on chemical balance.
- * Always shower before entering the pool.
- * If hair is longer than shoulder length, please braid it, confine it in a pony tail or bun, or wear a bathing cap — loose hair cannot be backwashed from filter and reduces efficiency. Threads from cutoffs cause the same problem.
- * Avoid swimming if you have a cold, infection, etc.

ARCHITECTURAL APPROVAL GUIDELINES
for
UNIVERSITY HILLS

The Architectural Committee in association with the Board of Directors have prepared the below listed Architectural Guidelines to assist you in formulating your plans for exterior additions, alterations or improvements.

Each lot owner should read, review and make themselves acquainted with the CC&R's and the Architectural Guidelines. They are intended to maintain the property values and the high standard of development that exists within University Hills. Even if your addition or alteration is identical to another, each situation may have different conditions, e.g., locations, physical condition or design considerations, etc. Each application will be reviewed on a case by case basis. In the event of any inconsistency between the Guidelines and the Declaration, the Declaration shall control.

APPLICATION PROCEDURE

Submittal —

Application and plans should be mailed to:

University Hills Homeowners' Association
P.O. Box 50069
Phoenix, Arizona 85076
(602) 820-3451

The following information should be included:

Application Form — A completed application form (copies of which can be obtained from the management office).

Plot Plan — A site plan showing dimensions, relation to existing dwelling and property lines (setbacks). Measurements must be written on plans.

Elevation Plans — Plans showing finished appearance of addition in relation to existing dwelling.

Specifications — Detailed description of materials to be used and the color.

All buildings and structures erected within University Hills and the use and appearance of all land within University Hills, shall comply with the applicable City of Mesa zoning and code requirements as well as the Declaration and these Guidelines.

Review — Approval and/or Disapproval —

The Architectural Committee shall have Thirty (30) days after acknowledged receipt of plans, to approve or disapprove.

Any approval of plans, specifications or proposed construction shall not constitute approval of the structural soundness of the addition, nor its effect on drainage. Neither the Architectural Committee or its members nor the Officers of the Association nor the Declaration shall have any liability in connection with or related to approved plans, specifications or improvements.

Appeal —

Any appeal of the Committee's decision must be submitted in writing to the Architectural Appeal Committee, c/o Kinney Management Services, P.O. Box 50069, Phoenix, Arizona 85076, within Thirty (30) days of the mailing of the Committee's decision.

The Appeal Committee will consist of five (5) Board appointed members. The appointed members will include one (1) Architectural Committee member, one (1) Board member and three (3) volunteer Homeowners. The Homeowner members cannot be active members of either the Architectural Committee or the Board of Directors.

AWNINGS

Submit the manufacturer, type of material & number of years guaranteed for approval prior to installation (if applicable).

Color must match trim of home.

Type of material must be acceptable.

Drip line of awning must not exceed the property line.

BASKETBALL BACKBOARDS AND PLAY COURTS

No basketball backboards or play courts shall be installed without the prior approval of the Architectural Committee.

CHILDREN'S PLAY STRUCTURES

Children's play structures must be submitted for approval (if in excess of 6 feet in height) since in most instances they protrude over the fence (6 feet). This is not intended to eliminate play structures, but to assure nothing unsightly is erected.

The maximum height which will be approved for pool ladders, slides, swing sets and jungle gym equipment is eight (8) feet.

DECORATIVE ITEMS (INCLUDING FOUNTAINS, LIGHT POLES AND ORNAMENTAL STATUARY)

These items must be located in the rear yard and be screened from view of neighbors, streets and common area, unless approved by the Architectural Committee in writing.

Decorative lighting is permitted within property boundaries, but must be screened in such a manner as not to hinder or interfere with a neighbors use or enjoyment of his/her property.

Flood lighting will not illuminate beyond or above the property's fence line and will not interfere or be a hinder to neighboring properties or common areas.

Flood lighting or decorative light fixtures attached to the front side (structure surface facing or visible from the street) of an existing structure must have Architecture Committee approval.

FENCES AND WALLS (INCLUDING DECORATIVE WALLS)

Fences, walls or additions to existing structures exceeding four (4) feet in height must be submitted to the Architectural Committee for approval prior to construction (This includes decorative walls). The material and color must match the existing dwelling in texture color.

The existing six (6) foot property wall cannot be extended in height beyond what was originally provided by Continental Homes.

FLAG POLES

No free-standing flag poles permitted.

GUTTERS AND DOWNSPOUTS

Gutters and downspouts must match the dwelling in color. The owner is responsible for the effect on drainage.

PATIO COVERS

Patio covers must be similar to type and style originally offered by Continental Homes.

Color must match the trim of the home.

Material and size of structure must also be submitted for approval.

POOLS AND SPAS

Pools and spas need not be submitted for architectural approval provided they meet all City of Mesa zoning and code requirements and NO associated structure exceeds a maximum of six (6) feet in height.

SIGNS

Refer to the CC&R's, Art. 8 Sec 8.1-K.

SOLAR

Solar applications must be submitted for approval prior to installation.

STORAGE SHEDS AND OTHER FREE-STANDING STRUCTURES

Storage sheds and other free-standing structures must be submitted to the Architectural Committee for approval.

Storage sheds and other free-standing structures shall not be visible from the street or neighboring properties by definition of the CC&R's, Art 1, Sec 1.15 (page 2), which states that "Visible from Neighboring Property" shall mean, with respect to any given object, visible to a person six (6) feet tall, standing on any part of neighboring property at an elevation no greater than the elevation of the base of the object being viewed.

All additions, alterations, modifications or improvements conducted by a homeowner prior to the issuance of these Guidelines, that fall within the approval requirements of the Guidelines should be submitted for approval as a matter of record NO LATER THAN AUGUST 18, 1989.

The above Architectural Guidelines may be amended by the Architectural Committee from time to time by a majority vote of members from the Architectural Committee and the Architectural Appeal Committee.

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